



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

July 01, 2019

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 20895

EXPIRATION DATE: 2019-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Innolith Snook LLC
Austin, TX
2. PURPOSE AND LIMITATIONS:
 - a. This emergency special permit authorizes the one-way transportation in commerce of lithium ion cells in alternative packaging. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(b)(3)(i) & (ii) in that inner and UN specification outer packagings are not required, except as specified herein.
5. BASIS: This emergency special permit is based on the application of Innolith Snook LLC dated May 31, 2019, submitted in accordance with § 107.117 and the determination

it is necessary to prevent economic loss.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) The battery modules weighing not more than 13 kg each must have strong impact-resistant side casings and be tightly packed in a strong wooden crate.

(2) Each wooden crate may hold up to twenty-one (21) battery modules with their tops removed.

(3) The crate filled with the modules must be covered and filled with bubble wrap to prevent movement and to protect terminals of the cells during transportation.

(4) The crate containing the modules must be tightly enclosed with a wooden lid.

(5) Up to five (5) one-way shipments with up to eight (8) crates in each shipment are authorized under this special permit.

b. TESTING: All lithium ion cells (Type C1001.00.100-6) must be of a type that has passed all required tests as specified in the "UN Manual of Tests and Criteria, 5th Revised Edition."

c. OPERATIONAL CONTROLS:

(1) Each battery module must be comprised of eight cells each rated at 77 Wh in a 4S2P configuration.

(2) The cells in the battery module casings may be offered for transportation provided the tops of the modules are removed to electrically disconnect the cells forming an array of individual cells within the module casings.

(3) This special permit authorizes one way shipments of special packagings containing crates from a warehouse in Hagerstown, MD to a climate-controlled warehouse in Williamsport, MD not exceeding ten (10) miles in distance.

(4) There must be no other hazardous materials on the transport vehicle.

(5) The cells must be transported in vehicles specifically hired for the transportation of the cells authorized under this Special Permit.

(6) The state-of-charge during shipment must be at zero (0) percent (i.e. completely discharged).

(7) Transport personnel must carry cell phones for emergency notification if an adverse event should occur during transportation.

d. MARKING: Each package must be marked with the special permit number "DOT-SP 20895" in accordance with § 172.301(c).

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SH/TG